

Subject: Paragraph 64 of DH v RH (No 3) [2024] EWFC 79 — unresolved question of fact before the President of the Family Division — response window expires 4 June 2026

Date: Monday, June 1, 2026 at 5:33:49 PM British Summer Time

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Attachments: Attachment_Index_28May2026_v3.pdf, Ex02_A1_Catalogue_of_InTrial_References.pdf, Ex10_StatementA_Suppression_of_Disability_22May2026.pdf, Ex15_Complete_Forensic_Judgment_Analysis_3Apr2026.pdf, Ex16_Statement_of_Institutional_Failure_17Apr2026.pdf, Ex17_PRELIMINARY_Suppression_of_Disability_16Mar2026.pdf, Ex19_Forensic_Judgment_Analysis_v2_29Mar2026.pdf, Ex20_Order_Analysis_02_CostsJudgment_15Mar2026.pdf, Ex35_Order_Analysis_No1_Judgment_EWFC79_15Mar2026.pdf, Ex44_Appellate_Compounding_Mechanism_25May2026.pdf, Ex46_Suppression_Disabilities_Horizontal_22May2026.pdf, Ex47_Attendance Notes — Zahmoul Final Hearing.pdf, Ex52_2026-05-28_PUBLIC_RECORD_Where_Is_The_Evidence_Paragraph_64_DH_v_RH_No3.pdf, Ex53_2024-04-18_DH_v_RH_No3_Final_Hearing_-_2024_EWFC_79.pdf, Ex57_Master_Archive_Index_28May2026_v2.pdf

Dear Mr Brown,

This letter is copied to Commissioner Sir Mark Rowley QPM because the matters to which it relates are also the subject of an existing criminal referral to the Metropolitan Police Service.

I write to you in your capacity as Special Reviewer on Global Finance and Cooperation to place on your record an unresolved question of fact, which I have formally placed before the President of the Family Division by letter of 29 May 2026 and to which a substantive reply remains outstanding.

I am an autistic litigant in person with a co-occurring diagnosis of Post-Traumatic Stress Disorder. During the ten-day final hearing in BV20D01752 (19–28 February 2024), the court repeatedly recognised my autism and PTSD and operated throughout the hearing under FPR Part 3A participation measures granted in consequence of those disabilities. The contemporaneous attendance notes of the hearing (Ex47) record twenty-five references to autism and PTSD, including thirteen made by the trial judge himself.

The judgment that followed, DH v RH (No 3) [2024] EWFC 79, contains no reference to autism, PTSD, disability, vulnerability, participation measures, or FPR Part 3A. The attendance notes and the judgment describe the same proceedings in materially different terms.

Paragraph 64 of that judgment nevertheless characterises my presentation in the witness box as having “bordered on the concerning” and states that I had become “obsessed” with demonstrating the existence of hidden assets. The contemporaneous evidential record (Ex47) contains no passage identifiable as corroborating that finding.

The question I have placed before the President of the Family Division is the following single binary question of fact:

Is there evidence within Ex47, the contemporaneous record of the oral evidence given during the ten-day final hearing, that corroborates the findings recorded at paragraph 64 of DH v RH (No 3) [2024] EWFC 79?

The question admits of one of two answers.

- If the answer is yes, I have respectfully requested identification of the specific passage or passages relied upon, by page and line reference.
- If the answer is no, I have respectfully requested confirmation that no such corroborating passage has been identified.

The significance of the question is straightforward. The findings recorded at paragraph 64 have subsequently formed part of a chain of judicial characterisations that continue to carry substantial procedural, financial, and reputational consequences. If those findings are supported by the contemporaneous evidential record, the supporting evidence should be identifiable. If they are not, that fact should be capable of clear determination.

The response window in my letter of 29 May 2026 to the President of the Family Division expires on 4 June 2026. If no substantive reply is received by that date, the non-response will form part of the documentary record of this matter.

I write to invite your attention to the question and the documentary record before that date.

Yours sincerely,

Nadia Zahmoul

Litigant in Person

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BV20D01752 | CA-2024-001342 | AC-2025-LON-004293 | BL-2024-001217 |
FA-2026-000019

Nadia Zahmoul

Claimant — Zahmoul v Secretary of State for Justice & HMCTS

High Court (Administrative Court) | Case Ref: **AC-2025-LON-004293**

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Repository: <https://github.com/nadiazahmoul/Zahmoul-v-SSJ-HMCTS-Public-Archive>

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